



PAT MCCRORY
Governor

DONALD R. VAN DER VAART
Secretary

MICHAEL SCOTT
Acting Director

MEMORANDUM

April 22, 2016

To: Donald R. van der Vaart, Secretary

From: Larry Frost, Engineer
Division of Waste Management
Solid Waste Section

Subject: Meeting Officer's Report
Coal Ash Impoundment Classification(s)
G.G. Allen Steam Station, Gaston County

On March 22, 2016, I served as meeting officer for a public meeting held at the Gaston Community College in Dallas, NC. The purpose of the public meeting was to allow the public to comment on the proposed risk classification for coal combustion residuals impoundments at the G.G. Allen Steam Station. This report summarizes all of the public comments related to the proposed risk classification for the G.G. Allen Steam Station.

This report has been prepared using the following outline:

- I. History/Background
- II. March 22, 2016 Public Meeting and Oral Comments Summary
- III. Written Public Comments Summary
- IV. Attachments

I. History/Background

Under the historic Coal Ash Management Act (CAMA) of 2014, all coal ash impoundments in North Carolina are required to be closed. The deadlines for closure depend on the classification of each impoundment as low, intermediate, or high. CAMA required the Department of Environmental Quality, or DEQ, to make available to the public the initial draft proposed classifications no later than Dec. 31, 2015. These draft proposed classifications were based on the information available to the department as of December 2015.

It is also important to note that these were not the final proposed classifications. After the release of the draft proposed classifications, CAMA requires the following process:

- DEQ must make available a written declaration that provides the documentation to support the draft proposed classifications within 30 days, which will be made available on the DEQ website. The written declaration will provide the technical and scientific background data and analyses and describe in detail how each impoundment was evaluated.
- DEQ will publish a summary of the declaration weekly for three consecutive weeks in a newspaper in each county where a coal ash facility is located.
- The declaration will be provided to each local health director and made available in a library in each county where a coal ash facility is located.
- The summary of the declaration will be provided to each person who makes a request.
- A public meeting will be held in each county where a coal ash facility is located.
- Following completion of the public meetings and the submission of comments, the department will consider the comments and develop final proposed classifications.

Subsequent to the issuance of DEQ's initial draft proposed classifications, fourteen public meetings were held across the state to receive oral comments from the public in addition to the open public comment period that ended on April 18, 2016. Meetings were held in each County in which a site is located (Attachment I-Public Notice). DEQ will consider all public comments received and issue its final classification for each impoundment by May 18, 2016.

II. March 22, 2016 Public Meeting and Oral Comments Summary

Approximately 230 people attended the public hearing (Attachment II-Attendance Forms), including staff members of the DEQ and the meeting officer. A total of 37 individuals completed the sign-in form at the meeting (Attachment III-Speakers Forms). As meeting officer, I provided opening comments and a brief presentation on the proposed risk classification for the G.G. Allen Steam Station.

Thirty-seven (37) individuals registered before the meeting to make comments, thirty-five (35) actually made comments. Speakers were given four minutes for initial presentations and additional time was provided after everyone that registered to speak was finished. The list of speakers is included as Attachment IV. The following is a summary of oral comments received at the public meeting summarized by topic (in no particular order):

- Health Issues – The speakers were most concerned about drinking water in the area of the G.G. Allen Steam Station, primarily hexavalent chromium and vanadium that has been detected. The speakers expressed being confused and angered by the letters sent to them by state officials regarding the safety of their drinking water. The speakers gave specific examples of cancer related deaths in the area and are concerned that the mortality rate in the area are higher due to coal ash contamination including; groundwater, airborne and surface water. The speakers demanded immediate action regarding a solution to drinking water issues.
- Ash Basin Classification – The speakers expressed that G.G. Allen is not a low priority site and demanded the site be rated as high priority if possible or at least intermediate. The speakers expressed concerns with the classification process and requested greater input and citizens over-site. Speakers expressed that the classification process is moving too fast.
- Groundwater – The speakers expressed concern over extensive groundwater contamination in the area. The speakers expressed concern that the models being used by Duke are in error, are incorrect, should be expanded and Duke is unwilling to change the models.
- Surface Water – The speakers expressed concerns that discharges from the impoundments are impairing the waters of the lake, with impacts to drinking water, fishing and recreation.
- Dam Safety – The speakers have concerns regarding impacts on the lake if the dams were to fail as they did at the Dan River Steam Station.
- Property Value – The speakers commented that their property values have dropped as a result of not being able to drink from their wells.
- Landfills – The speakers commented that all the coal ash should be removed and disposed of properly, placed in lined landfills, and no coal ash should be capped in place.
- Off-site – The speakers commented that several area communities were developed or constructed adjacent to or over coal ash fills, that are not within the property of G.G. Allen Steam Station.
- Other – A speaker from Duke Energy did outline cleanup activity and expressed support for Duke's activities. Speaker expressed concern over where Dr. Roudo is and that Dr. Williams is an ObGyn.

III. Written Public Comment Summary

In addition to the public meeting, DEQ received written comments during the public comment period. DEQ received 5 comments that were hand-submitted during the public meeting (Attachment V-Supporting Documentation) and 53 letters were sent via United States Postal Service mail (Attachment VI-USPS Comment). There were 971 comments received via email. The following is a summary of the written comments received during the comment period (in no particular order):

- Health Issues – Most were concerned about drinking water in the area of the G.G. Allen Steam Station, primarily hexavalent chromium and vanadium that has been detected. They expressed being confused and angered by the letters sent to them by state officials regarding the safety of their drinking water. They gave specific examples of cancer related deaths in the area and are concerned that the mortality rate in the area are higher due to coal ash contamination including; groundwater, airborne and surface water. And they demanded immediate action regarding a solution to drinking water issues.
- Ash Basin Classification – Most stated that G.G. Allen is not a low priority site and demanded the site be rated as high priority if possible or at least intermediate. They expressed concerns with the classification process and requested greater input and citizens over-site.
- Groundwater – They expressed concern over extensive groundwater contamination in the area. Some expressed concern that the models being used by Duke are in error, are incorrect, should be expanded and Duke is unwilling to change the models.
- Surface Water – Some expressed concerns that discharges from the impoundments are impairing the waters of the lake, with impacts to drinking water, fishing and recreation.
- Dam Safety – There are concerns regarding impacts on the lake if the dams were to fail as they did at the Dan River Steam Station.
- Property Value – Many commented that their property values have dropped as a result of not being able to drink from their wells.
- Landfills – They commented that all the coal ash should be removed and disposed of properly, placed in lined landfills, and no coal ash should be capped in place.

Note: The majority of the emails received appear to have been electronically generated with 5 messages being repeated.

IV. Attachments

- I. Public Notice of March 22, 2016 Meeting
- II. Public Meeting Sign-in Forms
- III. Public Meeting Speaker List
- IV. Audio File of Public Meeting (Unavailable)
- V. Written Public Comments Received
- VI. Supporting documentation received during public hearing
- VII. Meeting Notes
- VIII. Public Comment Summary Spreadsheet
- IX. File of Public Meeting

Note: The email record is available from OITS.